



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8859 (EXTENSION)
FIRST REVISION March 30, 1988

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8859 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to September 30, 1995. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

Alan I. Roberts
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

OCT 22 1993

(DATE)

Dist: FHWA FAA

EXEMPTION HOLDER

APPLICATION DATE

AVM, Inc.
Marion, SC

October 8, 1993

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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DOT-E 8859
(FIRST REVISION)

1. AVM Corporation, Division of Maremont Corporation, Marion, South Carolina, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to manufacture, mark and sell the packaging described in paragraph 7 below for use in the transportation of the hazardous materials described in paragraph 3 below in commerce, subject to the limitations and special requirements specified herein. This exemption authorizes shipment of a compressed gas mixture in accumulators which deviate from the required test criteria, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on the application dated January 28 and February 8, 1988, submitted by Dickstein, Shapiro and Morin, PC. on behalf of AVM Corporation in accordance with 49 CFR 107.103 and 107.105 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Mixture of nitrogen and a nonhazardous material, classed as a nonflammable gas.

4. PROPER SHIPPING NAME (49 CFR 172.101). Accumulator, pressurized.

5. REGULATION AFFECTED. 49 CFR 173.306(f)(2)(iii) and (f)(3), 175.3.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, passenger carrying aircraft, and cargo-aircraft only.

7. SAFETY CONTROL MEASURES. Packaging prescribed is an accumulator described as "pneumatic spring" conforming with the following:

a. Each pneumatic spring must conform with AVM Corporation's drawings PC 3015, dated January 13, 1982 and PC 3150 dated November 3, 1987, on file with the Office of Hazardous Materials Transportation (OHMT), having a 15 cubic inch maximum capacity, with a sidewall thickness designed to withstand at least 8500 psig pressure; charged to not over 1500 psig; and protected from bursting by pressure seals designed for 3,000 psig at ambient temperatures.

b. Two completed accumulators, - one from the beginning of each lot and one from each 1,000 accumulators or less successively produced within the lot thereafter - must be pressure tested to at least 2.5 times the charged pressure without leakage or distortion. A lot is defined as the quantity of accumulators successively produced per production shift not exceeding 10 hours, having identical size, design, construction, material, heat treatment, finish and quality.

8. SPECIAL PROVISIONS.

a. A copy of this exemption must be carried aboard each aircraft used to transport packages covered by this exemption.

b. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package or damage to the packaging must be reported to the OHMT as soon as practicable.

10. EXPIRATION DATE. January 31, 1990.

Issued at Washington, D.C.:


Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

MAR 30 1988
DATE

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA, FAA.